SANCTUARY
ON SPRUCE CREEK

COMMUNITY NEWLETTER-MARCH 2020

A MESSAGE FROM OUR PRESIDENT

I hope you all survived the holidays. By now families have returned home, and we are already planning trips, vacations and the next time we see our loved ones. Good. This is as it should be.

I wanted to call out a shout- out for one of our hard-working volunteers – Al Peterson. Al and his wife Jo have been two spectacular volunteers who help make our neighborhood run as smoothly as it does. You may not notice all that he does, but some of the things you would include keeping the gates running, the exterior lights working and putting up the Christmas wreath lights each year. They are a great couple and exemplify the people that make this neighborhood so great. If you haven't had the opportunity to meet them, I hope you get that chance. Thanks for all you do!

As many of you probably know, last year at the annual meeting we attempted to amend the C&Rs regarding the maintenance of sidewalks.

For those of you who may have missed this issue, as happens during annual ARC reviews, the ARC occasionally finds issues requiring maintenance to the sidewalks in front of our properties. For the vast majority of owners, the deficiencies surrounding those sidewalks are corrected promptly and without incident. From time to time (over the last 20 years I've been involved) we have had owners who refuse to maintain the sidewalks. Their reasoning for failing to do so vary. But again, these things usually have a way of working themselves out. Until 2019.

This time it was explicitly pointed out to the Board that the sidewalks in front of our properties were legally owned by the HOA in common. True statement and point acknowledged. A quick glance of your property's survey will confirm that. The conclusion forwarded was, that therefore, the sidewalks should be maintained by the HOA, not individual homeowners. The board, however, was not prepared to take that monumental step without some further review.

Since before I moved to the neighborhood in 1998, the C&Rs had always been interpreted as requiring all individual homeowners to maintain the sidewalks, driveways, and grassy areas next to the roadway. Some of the maintenance is explicit, such as the grassy areas (see section 14 of your C&Rs). Some are not so explicit. That said, I do not believe the Boards for the last 24 years have been interpreting the documents incorrectly. To the contrary, maintaining the sidewalks is quite consistent with the C&Rs. But as a board, we must acknowledge a very unfortunate deficiency in the way the C&Rs were written 25 years ago. The language regarding sidewalk maintenance is vague enough, that if the HOA were taken to court, we could quite likely lose.

In an attempt to correct that deficiency, the board proposed modifying language in the C&Rs to confirm that all maintenance of the sidewalks (including pressure washing, crack repair and replacement) should be the sole responsibility of the homeowner. A formal amendment was sent to all of the homeowners in the association. Unfortunately, that amendment failed to pass.

We could speculate as to the many reasons it did not pass, but at this point it is unproductive. The membership has clearly spoken, and the board must proceed based on that vote.

So, in view of the recent vote, the board will begin taking steps to transitioning maintenance of the sidewalks to the HOA. However, due to the late timing of the annual meeting and the vote, this cannot be reflected in our budget until 2021. For early 2020, the board will begin immediate work at defining the exact costs to provide the yearly maintenance, along with the establishing the proper reserves for the sidewalk replacement. As mentioned in the annual meeting in December, we could see the annual dues increasing by $100 to $200 annually, depending on final figures.

Costs for full annual maintenance and a reserve fund for the replacement of the sidewalks will be established prior to finalizing the 2021 budget. Starting in 2021, the sidewalks in front of your property that lie outside your platted property will be maintained by the HOA. The curb along the street will also be maintained by the HOA. Grassy areas (while being owned by the HOA) will continue to be maintained by the homeowners (as required and specifically stated in Section 14 of the C&Rs). Sidewalks removed by homeowners and replaced with pavers as part of a driveway replacement, will be considered driveways, and as such maintained by the homeowner. As for sidewalks that have been stained or painted by a homeowner in the past, the HOA will allow those homeowners to maintain them in that condition from an aesthetic provision. The HOA will not specifically maintain these types of modifications made by owners.

As we begin this significant change from individual homeowners maintaining sidewalks to the HOA, there are bound to be many questions. The board, the ARC, and TLC will do our best to make this transition as smooth as possible. The biggest question on most everyone's mind would be – Who is supposed to maintain the sidewalks during 2020?

As for light and minor maintenance (pressure washing, light crack repair), we can only request that all homeowners continue to maintain our properties as previously. Since the 2020 budget was approved prior to the amendment vote, we are unable to incorporate the needed budget changes this year. The only way to make a modification of this magnitude to the budget would require a special assessment, which we have never done in the entire history of the HOA. And I am quite adamant about not being the first president to propose one either. Instead, we can only implore the membership to maintain the property in the way you've been accustomed to. If you spot areas that require replacement of sidewalks or are an immediate danger to pedestrians, please direct them to Cheryl at the management company.

This is a significant departure from the past. We as a board and ARC committee will do our best to begin the process of interpreting the C&Rs with a new-found view that ,despite 25 years of precedence to the contrary, the sidewalks are actually the HOA's, and not each homeowner's responsibility. We as a board are committed as much now as before to maintain the assets in our care, to the best of our ability and to the high expectations that we have for our neighborhood. Please continue to help us, with your feedback as we navigate our way through this changing process.

If you have any input or comment, we welcome you to attend our monthly meetings and offer your help in adapting to these coming changes.

Warren Klemm

COMMUNITY MEETINGS

Board of Directors	Architectural Review
March 12th April 9th May 14th Meetings are held at 7PM at the Port Orange City Hall 2nd floor conference room. All residents are urged to attend.	Meetings are held on the FIRST Monday of the month except for holidays at 5:30PM in the Port Orange Library and are open to the community. September meeting will be on 9/9. Applications received during the month are reviewed at these meetings. If you plan to attend, please notify our property manager at 386-219-2010

HOA BOARD OF DIRECTORS

President Warren Klemm

Vice President Dave Hampton

Secretary/Treasurer Ann Colt

This newsletter is created for the information and entertainment of the residents of The Sanctuary on Spruce Creek. Comments, information, and opinions expressed are those of the individual writers and not necessarily shared by the Board of Directors. Official notices from the Board will be signed as such.

All HOA matters, including emergencies, maintenance needs, and complaints, should be directed to our management office: Cheryl Weber, TLC Professional Group,5889 S Williamson Blvd. Suite 1301,Port Orange, FL 32128 386-219-2010

BEFORE making any changes to the exterior of your home, your plans MUST BE APPROVED by our architectural review committee. Applications are reviewed monthly at the ARC monthly meetings Revised forms can be downloaded from our management website: TLC-PG.com

If your mailbox needs to be replaced call Stu Munson at 322-7033 for information regarding supplies and costs.

Nicholas & Sarah Ulrich	6115 Oxbow Bend Lane
Robert Heredia & Colleen Majury	6109 Oxbow Bend Lane
Theresa Callahan	6098 Jasmine Vine Lane

ARC ANNUAL REVIEW

Our Community is governed by Covenants and Restrictions (available on TLC-PG.com) which help to preserve and maintain property values.

The Annual Review of Lots, done by the ARC, is coming up again in the Spring.

The review is done to insure that basic maintenance items are being addressed.

The ARC thanks all of our neighbors in advance for their co-operation.

Please remember when fishing, all hooks and lines should be removed not cut, when they get tangled or caught.. If left in the pond, this debris is a hazard to some of the other wildlife that share these lakes. Thank you.

WHEN HIRING WORKERS FOR LANDSCAPING, TREE TRIMMING, ETC, MAKE SURE THEY ARE RESPONSIBLE FOR HAULING THE DEBRIS OUT OF THE COMMUNITY. DO NOT LET THEM LEAVE THE PILES AT THE CURB OR ANYPLACE ON OUR COMMON GROUNDS.

STORAGE UNITS (ACORN) UPDATE

Dave Hampton

Hello Neighbors,

The holiday season passed so quickly. Hope everyone enjoyed with family and friends. Spring time will soon be upon us.

In March during the school vacation break, the sidewalks along Roscoe Turner outside of our entrance gate will be replaced. The extra thickness of concrete with rebar added will structurally help to alleviate the major cracking that occurred when large vehicles drove over it.

Also, the Acorn storage project is nearing completion, and will be opening soon. David Fahmie, Project Developer, is planning for the end of February. He mentioned to call him at 772-473-7911, if you are in need of extra storage or have any comments regarding the facility or appearance. Acorn will be fine tuning the landscaping along Roscoe Turner with sod and mulch. The viburnum plants, once grown, will be maintained at 3 feet tall.

Lastly, continue to enjoy the community and the neighbors who make it our home.

ALL DOGS MUST BE ON A LEASH!

IT IS THE RESPONSIBILITY OF EACH INDIVIDUAL PET OWNER TO BE SURE THAT HIS/HER PET IS ON A LEASH WHEN NOT INDOORS, AND TO PICK UP AFTER THEM. IF THERE IS ANY ALTERCATION WITH THE PET, IT WILL BE THE HOME OWNER THAT WILL BE 100% RESPONSIBLE.

TO REPORT VIOLATIONS, AND YOU KNOW THE OFFENDERS ADDRESS, CALL OUR MANAGEMENT AGENT, TLC (219-2010).

CALL ANIMAL CONTROL (756-7400) IF YOU HAVE PICTURE PROOF OF THE INCIDENT. IN ADDITION TO A DOG BEING OFF A LEASH, THIS INCLUDES VIOLATIONS FOR NOT PICKING UP AFTER A PET, OR EXCESSIVE BARKING.

PROTECT OUR CHILDREN AND ALL RESIDENTS FROM POTENTIAL DANGER. OBEY THE SPEED AND STOP SIGNS THROUGHOUT OURCOMMUNITY. THEY ARE THERE FOR EVERYONE'S PROTECTION.

POLICE TRAFFIC ENFORCEMENT OFTEN PATROL OUR STREETS AND ISSUE SUMMONSES

PLEASE OBEY THESE LAWS!!!

DON'T FORGET, DAYLIGHT SAVINGS TIME BEGINS MARCH 8TH. REMEMBER TO SET YOUR CLOCKS ONE HOUR AHEAD ENJOY THE EXTRA DAY LIGHT!!

HELP KEEP OUR

NEIGHBORHOOD CLEAN

Be sure all trash can lids are securely fastened when placing them curbside. If your trash is not picked up or if bags are broken by the collectors, it is your responsibility to be sure this is cleaned up.

Be sure to secure recyclables in the proper bins. Newspapers should be tied or placed in acceptable bags. Again, any breakage or blowing paper is your responsibility to clean up.

Green cutting should be placed curbside.

All receptacles should be placed curbside no earlier than the evening before pick up. At all other times. they should be stored inside your garage, and not visible from the street.

THANKS FOR DOING YOUR PART!